

CASSATION & ECHR · 6 MAY 2002

Judgment of the Court of Cassation

TYPE	COURT	DATE	PARTIES
Court decision	The Court of Cassation	6 May 2002	Bernard Collorafi v. McDonald's France

SUMMARY SHEET

Non-admission judgment — Court of Cassation, commercial chamber · 6 May 2002

Overview: judgment of the Court of Cassation, commercial, financial and economic chamber, ruling on appeal no. X 00-14.487 brought by Bernard Collorafi and the companies Les Pins, Sebol and B et O against the company Mac Donald's France.

Key points

The appeal was directed against two judgments delivered on 9 December 1998 and 8 March 2000 by the Paris Court of Appeal (16th chamber, section A). The case was examined at the public hearing of 12 March 2002, presided over by Mr Dumas, on the report of Mrs Mouillard, conseiller référendaire, with the observations of SCP Bouzidi for the appellants and of SCP Delaporte et Briard for Mac Donald's France. The Court formally notes that Mr Gauthier, liquidator of the companies Les Pins and B et O, has taken over the proceedings. Considering that the grounds relied on are not such as to allow the appeal to be admitted, it declares the appeal non-admitted, orders the appellants to pay the costs and to pay Mac Donald's the sum of 2,250 euros under Article 700 of the new Code of Civil Procedure.

Significance

This decision closes the cassation route and makes final the orders made on appeal, bringing the judicial course of the dispute to an end.

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Source: bernardcollorafi.org/en/documents/court-of-cassation-collorafi-appeal-not-admitted-mcdonalds-2002/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.